

Amna Khatoon v. U.P. Power Corporation Limited & 3 Others

Allahabad High Court · Division Bench · 2 September 2022 · Writ - C No. 15139 of 2022 · **Writ petition disposed of; petitioner, though not a party to the Forum complaint, relegated to an Ombudsman appeal under Clause 7.10(iv); if filed after Code formalities, to be decided within one month without going into limitation; no opinion on merits**

HEADNOTE

A person who was not arrayed in a Consumer Grievance Redressal Forum complaint is nonetheless an aggrieved party entitled to a statutory appeal to the Ombudsman under Clause 7.10(iv) of the U.P. Electricity Supply Code, 2005, where the Forum's order under Clause 7.10(i) directs recovery of outstanding dues from her and her electricity connection has been disconnected on account of those arrears. Want of party status in the Forum proceedings does not deny that appeal. Applying the Supreme Court's locus holding in *B.M. Agarwal v. Chancellor, University of Allahabad*, (2003) 6 SCC 500, the writ court will not examine the Forum order on merits. If an appeal is preferred after fulfilling the Code formalities, the Ombudsman shall decide it within one month without going into limitation, uninfluenced by the writ court's observations. The writ is disposed of.

FACTUAL SUMMARY

Amna Khatoon petitioned the Allahabad High Court against an order dated 9 November 2021 of the Electricity Consumer Grievance Redressal Forum, Kanpur, in Complaint Case No. 22 of 2021 (*Rajan Singh v. KESCO*). The Forum made Rajan Singh, son of Shankar Singh, eligible for an electricity connection at House No. 41-C, Naya Kazi Kheda, Harjendra Nagar, Kanpur Nagar, and directed recovery of outstanding dues from Amna Khatoon, widow of the earlier occupant. Her supply had been disconnected for those arrears. Respondents 2, 3 and 4 objected that the Forum order was under Clause 7.10(i) of the U.P. Electricity Supply Code, 2005, so her remedy was an appeal to the Ombudsman under Clause 7.10(iv). She submitted that she was not a party to the Forum complaint and therefore had no statutory right of appeal. Listings on 6 July, 22 July and 18 August 2022 had only sought a counter and a rejoinder.

REUSABLE CONSTRUCTIONS

1. A person against whom a Consumer Grievance Redressal Forum order directs recovery of outstanding dues, and whose electricity connection is disconnected on that account, is an aggrieved party who may appeal to the Ombudsman under Clause 7.10(iv) of the U.P. Electricity Supply Code, 2005, even if she was not a party to the Forum complaint. ¶ 6-8
2. Where the Forum order is under Clause 7.10(i), a writ against that order is not examined on the merits when Clause 7.10(iv) affords an Ombudsman appeal to the person aggrieved. ¶ 3, 8-10

HOLDING-UNITS

HOLDING-UNIT · UP-2005::7.10(iv)

Ombudsman appeal by a non-party to the CGRF complaint who is directed to pay arrears and whose supply is disconnected

QUESTION

Can a person who was not a party to a Consumer Grievance Redressal Forum complaint challenge the Forum's order in writ on the footing that she has no statutory appeal, or is she an aggrieved party who must appeal to the Ombudsman under Clause 7.10(iv)?

HOLDING

She is an aggrieved party who may (and in a writ is left to) appeal under Clause 7.10(iv). Respondents treated the 9.11.2021 Forum order as one under Clause 7.10(i), so that the statutory appeal was to the Ombudsman under Clause 7.10(iv). The petitioner said she was not a party in Complaint Case No. 22 of 2021 (*Rajan Singh v. KESCO*) and therefore had no statutory right of appeal. The Court held that because her connection had

been disconnected on account of arrears which the Forum had directed her, as widow of the earlier occupant, to pay, she answered the description of a party aggrieved. Applying *B.M. Agarwal*, (2003) 6 SCC 500, it was open to her to prefer the Clause 7.10(iv) appeal. If she does so after fulfilling the Code formalities, the Ombudsman shall decide it within one month without going into limitation, and without being influenced by the writ court's observations. The Court did not enter the merits. The writ was disposed of. ¶ 3-10

QUALIFIER

The Court did not decide whether the petitioner was a 'consumer' within the Code definition; it held only that she was a party aggrieved for Clause 7.10(iv). It did not stay recovery or restoration pending the Ombudsman appeal.

FLAG Five-page PDF concatenates four unnumbered sittings. Operative disposal is 2.9.2022 (Siddhartha Varma and Vikas Budhwar, JJ.). Paras are sequential blocks of that order only (1 rejoinder taken on record; 2 challenge to the 9.11.2021 Forum order; 3 respondents' Clause 7.10(i)/7.10(iv) objection; 4 petitioner not a party / no appeal right; 5 operative Forum directions; 6 petitioner is aggrieved and can appeal; 7 *B.M. Agarwal* quotation; 8 principles applied; 9 one-month decision without limitation; 10 no expression on merits; 11 disposed of). Earlier listings: 6.7.2022 and 22.7.2022 (Manoj Kumar Gupta and Dr. Yogendra Kumar Srivastava, JJ.) time for counter; 18.8.2022 (Manoj Kumar Gupta and Ram Manohar Narayan Mishra, JJ.) time for rejoinder. The Court attributed the Forum order to Clause 7.10(i) of the Supply Code, 2005, as the respondents submitted; keyed as spoken (UP-2005::7.10(iv) / 7.10(i)). Catalog also carries CGRF-2007::7.10; not silently re-keyed.

PRINCIPLE TAGS

alternate-remedy-clause-7.10 The writ against the 9.11.2021 Kanpur Forum order (connection to Rajan Singh; recovery from Amna Khatoon) was disposed of because Clause 7.10(iv) afforded an Ombudsman appeal to her as a party aggrieved; the Court did not examine the Forum order on merits. Lead authorities: *B.M. Agarwal v. Chancellor, University of Allahabad*. ¶ 6-10

clause-7.10-forum-ombudsman-route-for-billing-grievances Respondents 2, 3 and 4 treated the Forum order as one under Clause 7.10(i), so that the next step was an Ombudsman appeal under Clause 7.10(iv). The Court accepted that route even though the petitioner had not been a party to Complaint Case No. 22 of 2021, because the Forum had directed recovery from her and her supply had been disconnected. ¶ 3-8

NOT DECIDED — NEGATIVE AUTHORITY

NOT DECIDED — CORRECTNESS OF THE CGRF ORDER DATED 9.11.2021 GRANTING RAJAN SINGH A CONNECTION AT HOUSE NO. 41-C AND DIRECTING RECOVERY OF OUTSTANDING DUES FROM AMNA KHATOON

Expressly left to the Ombudsman under Clause 7.10(iv), to be decided uninfluenced by the writ court's observations if an appeal is filed after fulfilling Code formalities. ¶ 10

NOT DECIDED — WHETHER THE FORUM COULD GRANT A FRESH CONNECTION TO A THIRD-PARTY COMPLAINANT WHILE FASTENING PREDECESSOR ARREARS ON A NON-PARTY WIDOW, AND THE QUANTUM OF THOSE DUES

Not examined; the writ court decided only standing for the Clause 7.10(iv) appeal. ¶ 5-6, 10

TABLE OF AUTHORITIES

AUTHORITY	PROPOSITION	HOW TREATED	CITED BY	TREATMENT
<i>B.M. Agarwal v. Chancellor, University of Allahabad and others</i> (2003) 6 SCC 500 Supreme Court	Quoted at para 10 (the extract also recites para 9): locus is not denied where the impugned observations adversely bear on the appellant, giving justification to appeal. Applied analogically so that Amna Khatoon, though not a party to the Forum complaint, was a party aggrieved by the recovery direction and disconnection and could appeal under Clause 7.10(iv).		Court	Applied

